File

California Regional Water Quality Control Board

Central Coast Region

Terry Tamminem
Secretary for Environmental Protection

Internet Address: http://www.swrcb.ca.gov/rwqcb3
895 Aerovista Place, Suite 101, San Luis Obispo, California 93401
Phone (805) 549-3147 • FAX (805) 543-0397

Arnold Schwarzenegger

December 3, 2004

Rob Miller
Fiero Lane Water Company
C/o Wallace Group
4115 Broad Street, Suite B-5
San Luis Obispo, CA 93401-7963

Dear Mr. Miller:

WASTE DISCHARGE AND WATER RECYCLING REQUIREMENTS ORDER NO. R3-2004-0154 FOR FIERO LANE WATER COMPANY, SAN LUIS OBISPO COUNTY

Enclosed is Waste Discharge and Water Recycling Requirements Order No. R3-2004-0154 for Fiero Lane Water Company, San Luis Obispo County. Order No. R3-2004-0154 was adopted by the Regional Water Quality Control Board on December 3, 2004, and is effective immediately.

If you have any questions, please feel free to contact **Matt Thompson at (805) 549-3159**.

Sincerely,

Roger W. Briggs
Executive Officer

Enclosure: Waste Discharge and Water Recycling Requirements Order No. R3-2004-0154 (including MRP)

Cc:

Kurt Souza
California Department of Health Services
1180 Eugenia Place, Suite 200
Carpinteria, CA 93013

San Luis Obispo County Engineering
County Government Center, Room 207
San Luis Obispo, CA 93408

Richard Lichtenfels
San Luis County Environmental Health Dept.
P. O. Box 1489
San Luis Obispo, CA 93406-1489

David Hix
City of San Luis Obispo
879 Morro Street
San Luis Obispo, CA 93401

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STATE OF CALIFORNIA
CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD
CENTRAL COAST REGION
895 Aerovista, Suite 101
San Luis Obispo, California 93401

WASTE DISCHARGE AND WATER RECYCLING REQUIREMENTS
ORDER NO. R3-2004-0154

Waste Discharge Identification No. 3 401023001

For

FIERO LANE WATER COMPANY
SAN LUIS OBISPO COUNTY

The California Regional Water Quality Control Board, Central Coast Region, (hereafter Regional Board), finds:

FACILITY OWNER AND LOCATION

1. Fiero Lane Water Company, Inc. (hereafter Discharger or Producer), PO Box 14704, San Luis Obispo, California 93401, owns and operates a wastewater treatment and disposal facility located on Fiero Lane, just outside the southern limits of the City of San Luis Obispo, as shown in Attachment A. The facility serves several existing and planned commercial developments in the unincorporated area surrounding the facility.

PURPOSE OF ORDER

2. On July 21, 2004, the Discharger requested permission to expand their secondary treatment facility capacity from 15,000 gallons per day (gpd) capacity to 25,000 gpd to serve the planned Morabito-Burke commercial development; add a tertiary treatment process to recycle a portion of the secondary-treated wastewater flow; and allow spray irrigation of landscaping with recycled water at the Morabito-Burke and Senn-Glick developments.

FACILITY DESCRIPTION

3. **Existing Facilities** – The existing secondary treatment facility is a 15,000-gpd capacity extended aeration package treatment plant with chlorine disinfection. Approximately 7,000 gpd is currently disposed to three disposal areas: (1) Disposal Area No. 1 – a 2.0 acre subsurface drip irrigation system, (2) Disposal Area No. 2 – a 0.5 acre area that will be used in the future for irrigation and/or subsurface disposal; and (3) a 1.2 million gallon lined storage pond. These facilities are shown in Attachment B. Treated wastewater is periodically taken from the storage pond by tanker truck and used for soil compaction and dust control at local construction sites.

4. **Proposed Facilities** – Wastewater from the planned Morabito-Burke and Senn-Glick developments will be transmitted by gravity collection system and force main approximately 0.5 mile northwest along Highway 227 to the existing treatment facility. A second extended aeration package plant will be added to increase the capacity of the secondary treatment process to 25,000 gpd to accommodate this additional wastewater flow. A portion of the secondary treated wastewater flow will be transmitted by force main back to the Morabito-Burke development, where it will undergo tertiary treatment. Tertiary treatment will include coagulation, a Westech Technasand Upflow Sand Filter or equivalent, and chlorine contact. The tertiary treatment process is designed to produce at least 13,000 gpd of Title 22 Tertiary 2.2 quality recycled water. Recycled water will be used to spray irrigate approximately 32.5 acres of landscaping at the Morabito-Burke and Senn-Glick developments. The recycled water system will include a 2.76 acre-foot lined storage pond with 90-days of storage capacity for periods of wet weather. A treatment process flow diagram is shown in Attachment

C. The location of these facilities and recycled water use areas is shown in Attachment B.

5. The Morabito-Burke and Senn-Glick gravity collection systems will be designed according to City of San Luis Obispo specifications to facilitate future annexation and connection to the City's wastewater facilities.

6. **Hydrogeology** – All disposal areas are located on nearly level topography consisting of silty clay soils with poor percolation. Depth to groundwater is 10 to 20 feet in the vicinity of the Disposal Area No. 1, 15 to 25 feet in the vicinity of Disposal Area No. 2, and approximately 15 feet at the recycled water use area.

7. The Discharger's water supply is groundwater from onsite wells (Nos. 1, 2, 3, and 4) as shown on Attachment B. Well Nos. 1 and 4 are representative of groundwater downgradient of wastewater disposal areas.

BASIN PLAN

8. The Water Quality Control Plan, Central Coastal Basin, (Basin Plan) was adopted by the Board on November 17, 1989 and approved by the State Board on August 16, 1990. The Board approved amendments to the Basin Plan on February 11, 1994 and September 8, 1994. The Basin Plan incorporates statewide plans and policies by reference and contains a strategy for protecting beneficial uses of State waters.

9. Present and anticipated beneficial uses of groundwater in the vicinity of the discharge include:

   a. Domestic Supply;
   b. Industrial Supply, and
   c. Agricultural Supply.

10. The nearest surface water body to this discharge is the East branch of the San Luis Obispo Creek, approximately 700 feet to the north of Disposal Area No. 2. Present and anticipated beneficial uses of San Luis Obispo Creek are:

   a. Municipal and domestic supply;
   b. Ground water recharge;
   c. Body contact and non-contact recreation;
   d. Wildlife habitat;
   e. Warm freshwater habitat;
   f. Spawning, reproduction and/or early development;
   g. Rare, threatened, or endangered species;
   h. Freshwater replenishment; and
   i. Sportfishing.

MONITORING PROGRAM

11. Monitoring and Reporting Program (MRP) No. R3-2004-0154 is a part of the proposed Order. The MRP requires routine monitoring of water supply, influent, secondary treatment process effluent, tertiary treatment process effluent, disposal areas, and recycled water use areas to verify compliance with this order and protection of water quality.

CEQA

12. County of San Luis Obispo issued a Negative Declaration (pursuant to Public Resources Code Section 21000 et. seq., and California Code of Regulations Section 15000 et. seq.) for the Morabito-Burke commercial development on May 23, 2003. The Negative Declaration includes mitigation measures regarding water and wastewater as conditions of approval that are implemented through this Order. The Regional Board has considered the Negative Declaration and concurs that the identified mitigation measures reduce all impacts on water quality to a less than significant level.

EXISTING ORDERS AND GENERAL FINDINGS

13. State Department of Health Services' criteria for production and use of recycled water is contained in Title 22, Division 4, Chapter 3, of the California Code of Regulations. The Regional Board has consulted with the State Department of Health Services regarding the regulation of this discharge.

14. The discharge was previously regulated by Waste Discharge/Water Reclamation Requirements Order No. R3-2003-039, adopted by the Regional Board on October 24, 2003.

15. Discharge of waste is a privilege, not a right, and authorization to discharge is conditional upon the discharge complying with provisions of Division 7 of the California Water Code

and any more stringent effluent limitations necessary to implement water quality control plans, to protect beneficial uses, and to prevent nuisance. Compliance with this Order should assure this and mitigate any potential adverse changes in water quality due to the discharge.

16. On September 20, 2004, the Board notified the Discharger and interested agencies and persons of its intent to revise waste discharge requirements for the discharge and has provided them with a copy of the proposed order and an opportunity to submit written views and comments.

17. After considering all comments pertaining to this discharge during a public hearing on December 3, 2004, this Order was found consistent with the above findings.

IT IS HEREBY ORDERED, pursuant to authority in Section 13263 and 13523 of the California Water Code, Fiero Lane Water Company, Inc., its agents, successors, and assigns, may discharge waste at the afore-described facilities, providing compliance is maintained with the following:

All technical and monitoring reports submitted pursuant to this Order are required pursuant to Section 13267 of the California Water Code. Failure to submit reports in accordance with schedules established by this Order, attachments to this Order, or failure to submit a report of sufficient technical quality to be acceptable to the Executive Officer, may subject the discharger to enforcement action pursuant to Section 13268 of the California Water Code. The Regional Board will base all enforcement actions on the date of Order adoption.

(Note: other prohibitions and conditions, definitions, and the method of determining compliance are contained in the attached "Standard Provisions and Reporting Requirements for Waste Discharge Requirements" dated January 1984.)

A. PROHIBITIONS

1. Discharge to areas other than the designated discharge areas or recycled areas shown in Attachment B or described above is prohibited.

2. Discharge of any wastes, including overflow, bypass, and seepage from transport, treatment, or disposal systems, to adjacent drainage ways, or adjacent properties is prohibited.

3. Bypass of the treatment facilities and discharge of untreated or partially treated wastes is prohibited.

4. Discharge of any waste other than domestic wastewater to the treatment and disposal system is prohibited.

B. SECONDARY-23 EFFLUENT LIMITATIONS

1. Effluent flow from the secondary treatment process shall not exceed 15,000 gallons per day (gpd). After expansion of the secondary treatment process, effluent flow shall not exceed 25,000 gpd.

2. Effluent from the secondary treatment process shall not exceed the following limitations:

Constituent	**Unit**	**Monthly (30-Day) Average**	**Maximum**
Settleable Solids	mL/L	--	0.1
Total Dissolved Solids	mg/L	1,450	1,800
Total Suspended Solids	mg/L	10[2]	30
Turbidity	NTU	10	--

3. Effluent from the secondary treatment process shall not have a pH less than 6.5 or greater than 8.4.

4. The median concentration of total coliform bacteria in effluent from the secondary treatment process shall not exceed a Most Probable Number (MPN) of 23 per 100 mL, utilizing the bacteriological results of the last seven days for which analyses have been completed. Total coliform bacteria shall not exceed 240 per 100 mL in more than one sample in any 30-day period. This limitation does not apply to effluent that is discharged to subsurface disposal areas.

[2] Compliance shall be determined from the results of the five most recent samples.

C. SECONDARY-23 RECYCLED WATER USE SPECIFICATIONS

1. The User of Secondary-23 recycled water shall ensure that recycled water is used at construction sites for dust control or soil compaction in accordance with the following requirements:

2. The Producer or User shall notify the Regional Board in writing at least 14 days prior to use of Secondary-23 recycled water. The notification will include a detailed description of the planned operation and a map of the site.

3. User shall instruct, orally and in writing, each recycled water tank truck driver as to the requirements of this Order and the potential health hazards involved with the use of recycled water.

4. The User shall ensure that tank trucks and other equipment which contain or contact recycled water are clearly identified with warning signs which state, for example, "RECYCLED WATER: DO NOT DRINK".

5. Recycled water shall be confined to the authorized use area.

6. Recycled water shall be applied so as to ensure that no ponding or runoff occurs.

7. Recycled water shall be applied so as to minimize aerosol formation during spraying.

8. Recycled water shall be applied so as to prevent public or employee contact with the water.

9. The User shall ensure that recycled water cannot be introduced into any permanent piping system, and that no connection can be made between the tank truck and any part of a domestic water system.

10. The User shall ensure that recycled water use areas are posted with signs informing the site personnel that recycled water is in use.

11. All trucks used to haul recycled water must have water tight valves and fittings, must not leak, must be clean of other contaminants before being used to haul recycled water, cannot be used to haul water for potable uses, and cannot be connected to potable water supply systems.

D. TERTIARY-2.2 EFFLUENT LIMITATIONS

1. All Tertiary 2.2 recycled water produced shall conform to recycled water criteria contained in Title 22, Division 4, Chapter 3, of the California Code of Regulations.

2. Tertiary treatment process effluent turbidity shall not exceed an average of 2 NTU within a 24-hour period; 5 NTU more than 5 percent of the time within a 24-hour period; or 10 NTU at any time.

3. The median concentration of total coliform bacteria measured in the disinfected effluent shall not exceed 2.2 MPN per 100 mL, utilizing the bacteriological results of the last seven days for which analyses have been completed. Total coliform bacteria shall not exceed 23 MPN per 100 mL in more than one sample in any 30-day period. No total coliform bacteria sample shall exceed 240 MPN per 100 mL.

E. TERTIARY-2.2 RECYCLED WATER USE SPECIFICATIONS

1. Use of recycled water shall be conform to recycled water criteria contained in Title 22, Division 4, Chapter 3, of the California Code of Regulations.

2. Recycled water shall be confined within the designated recycled water use area shown in Attachment B.

3. Recycled water shall not be used for irrigation during periods of extended rainfall and/or runoff.

4. Recycled water shall not be applied, or impounded, within 50 feet of any domestic water supply well.

5. Personnel involved in producing, transporting, or using recycled water shall be informed of possible health hazards that may result from contact and use of recycled water.

6. Use of recycled water shall occur at a time and in a manner to prevent or minimize public contact with effluent.

7. Discharger shall operate the recycled water system to minimize ponding or puddling in the irrigated area.

8. Discharger employees shall be informed of possible hazards associated with contact or use of recycled water.

9. All irrigation system valves shall be of a design such that the public cannot open them and take water from the system.

10. Drinking water fountains shall be protected against contact with recycled water spray, mist, or runoff.

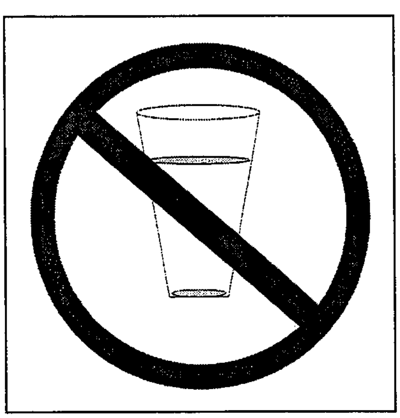
11. Recycled water spray, mist, or runoff shall not enter dwellings, designated outdoor eating areas, or food handling facilities.

12. Valves in the recycled water irrigation system shall be designed and constructed so unauthorized persons cannot open them.

13. Proper backflow and cross-connection protection for domestic water services and irrigation wells shall be provided.

14. Hose bibbs or other types of hose connections installed in the recycled water irrigation system shall be of different sizes or have other measures incorporated to preclude interchange of hoses between fresh and recycled water-irrigation systems.

15. All recycled water reservoirs and other areas with public access shall be posted (in English and Spanish) with signs that are visible to the public, in a size no less than 4 inches high by 8 inches wide, that include the following wording: "RECYCLED WATER – DO NOT DRINK". Each sign shall display an international symbol similar to that shown below.



The Executive Officer may accept alternative signage and wording, or an educational program, provided the User demonstrates to the Executive Officer that the alternative approach will assure an equivalent degree of public notification.

16. Recycled water systems shall be properly labeled and regularly inspected to assure proper operation, absence of leaks, and absence of illegal connections.

17. The incidental discharge of recycled water to waters of the State is not a violation of these requirements if the incidental discharge does not unreasonably affect the beneficial uses of the water, and does not result in exceedances of an applicable water quality objective in the receiving water.

F. DESIGN AND OPERATION SPECIFICATIONS

1. New gravity collection system mains, secondary treated wastewater force mains, and recycled water distribution mains shall be metal-taped to allow them to be easily located prior to future excavations near the pipeline corridors.

2. The tertiary treatment facilities shall comply with the General Requirements of Design and Reliability Requirements, as found in Title 22, Division 4, Chapter 3, Articles 8 and 10, of the California Code of Regulations. This includes alarm devices, standby power supply, and other reliability features.

3. The tertiary treatment facilities shall include coagulant addition ahead of the filter; with adequate detention following coagulant addition to ensure that flocculation occurs prior to filtration.

4. Filter loading rate shall not exceed 5 gallons per minute per square foot of surface area.

5. Filter media shall be maintained at a depth of at least 40 inches of sand with an effective size of 1.3 millimeters or less and a uniformity coefficient of approximately 1.5.

6. Filter media shall be completely recycled no less frequently than every 4 hours of filter operation.

7. Tertiary effluent shall be subject to a chlorine disinfection process that provides a CT (chlorine concentration times modal contact time) value of not less than 450 milligram-minutes per liter at all times, with a modal contact time of at least 90 minutes, based on peak dry weather design flow.

8. A State-Certified Operator of at least Grade III shall oversee facility operations.

9. Surface drainage shall be excluded from storage ponds and subsurface disposal areas.

10. The subsurface disposal areas shall be managed to prevent rainwater or surface water from ponding thereon.

11. Freeboard in the recycled water storage ponds shall be greater than two feet at all times.

12. The subsurface discharge areas shall be maintained at least 100 feet from any water well and 100 feet from any drainage way.

13. Solids generated by the treatment process shall be disposed of at a facility approved by the Executive Officer.

G. GROUNDWATER LIMITATIONS

1. The discharge shall not cause nitrate concentrations in the groundwater downgradient of the disposal area to exceed 8 mg/L (as N).

2. The discharge shall not cause a significant increase of mineral constituent concentrations in underlying groundwaters.

3. The discharge shall not cause concentrations of chemicals and radionuclides in groundwater to exceed limits set forth in Title 22, Chapter 15, Articles 4 and 5 of the California Code of Regulations.

H. PROVISIONS

1. Discharger shall submit an engineering report by **December 3, 2005** that demonstrates facility compliance with General Requirements of Design and Reliability Requirements, as found in Title 22, Division 4, Chapter 3, Articles 8 and 10, of the California Code of Regulations.

2. The Fiero Lane Water Company Board supports the concept of annexation to the City of San Luis Obispo when such a connection becomes available and the City completes its Environmental and Annexation studies. At such time, the Fiero Lane Water Company, in consultation with the City and Regional Board staff, will evaluate and provide its determination towards the financial viability of annexation and hookup to the City's collection system. The Discharger shall provide the Regional Board with a written update on City activities relating to annexation with the annual reports due on January 30th of each year.

3. Discharger shall submit written verification, including acknowledgment from the City of San Luis Obispo, that the new gravity collection systems for the Morabito-Burke and Senn-Glick developments are designed according to City of San Luis Obispo specifications, **at least 30 days prior to commencement of construction of the collection systems.**

4. Order No. R3-2003-039, "Waste Discharge/Water Reclamation Requirements for Fiero Lane Water Company, San Luis Obispo County," adopted by the Board on October 24, 2003, is hereby rescinded.

5. Discharger shall comply with "Monitoring and Reporting Program No. R3-2004-0154," as specified by the Executive Officer.

6. Discharger shall comply with all items of the attached "Standard Provisions and Reporting Requirements for Waste Discharge Requirements" dated January 1984.

7. Wastewater storage shall be provided as necessary to comply with this Order.

8. Pursuant to Title 23, Chapter 3, Subchapter 9, of the California Code of Regulations, the Discharger must submit a written report to the Executive Officer not later than **June 3, 2009**, addressing:

   a. Whether there will be changes in the continuity, character, location, or volume of the discharge; and,

   b. Whether, in their opinion, there is any portion of the Order that is incorrect, obsolete, or otherwise in need of revision.

I, **Roger W. Briggs, Executive Officer,** do hereby certify the foregoing is a full, true, and correct copy of an Order adopted by the California Regional Water Quality Control Board, Central Coast Region, on December 3, 2004.

Roger Briggs

Executive Officer

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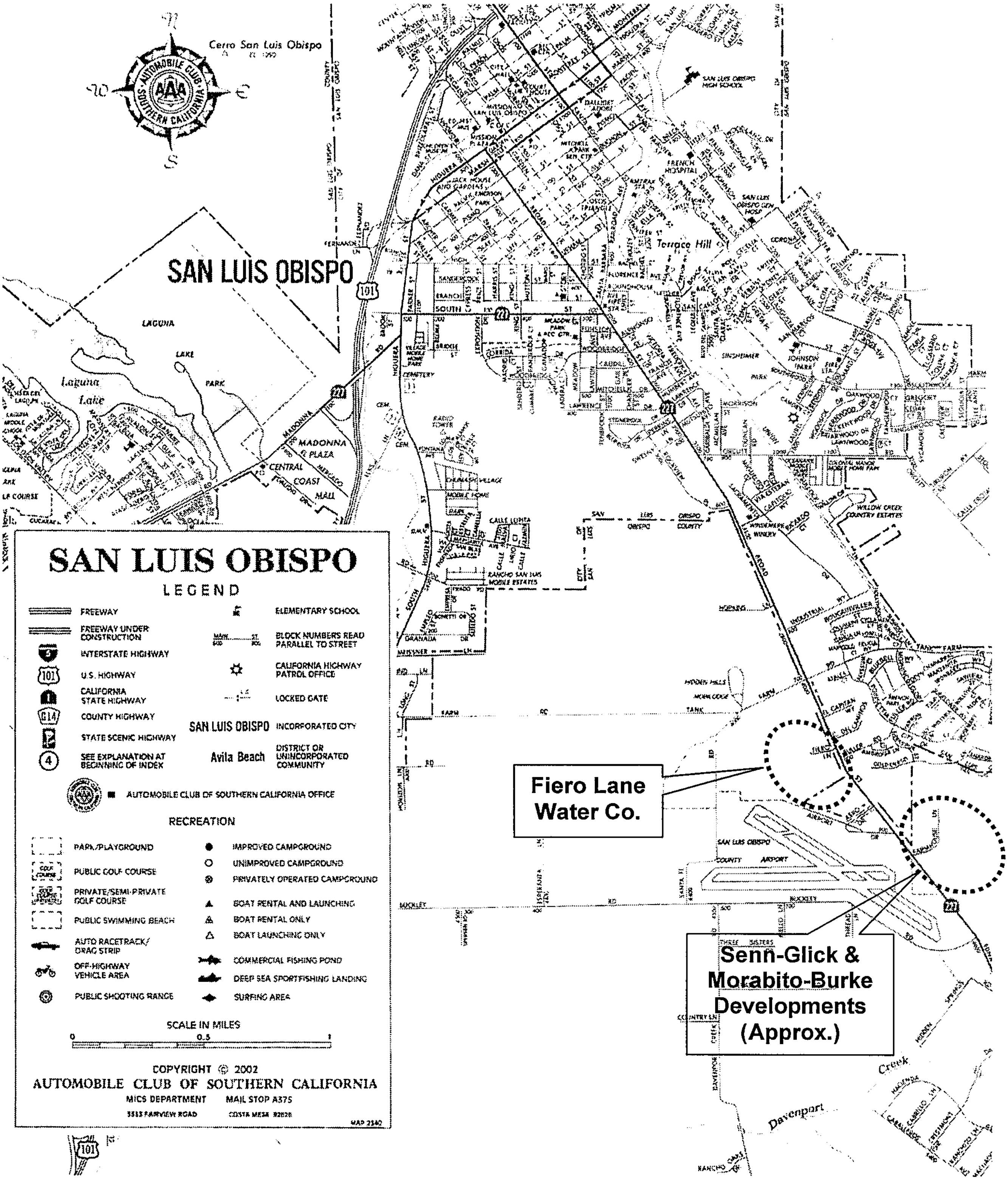
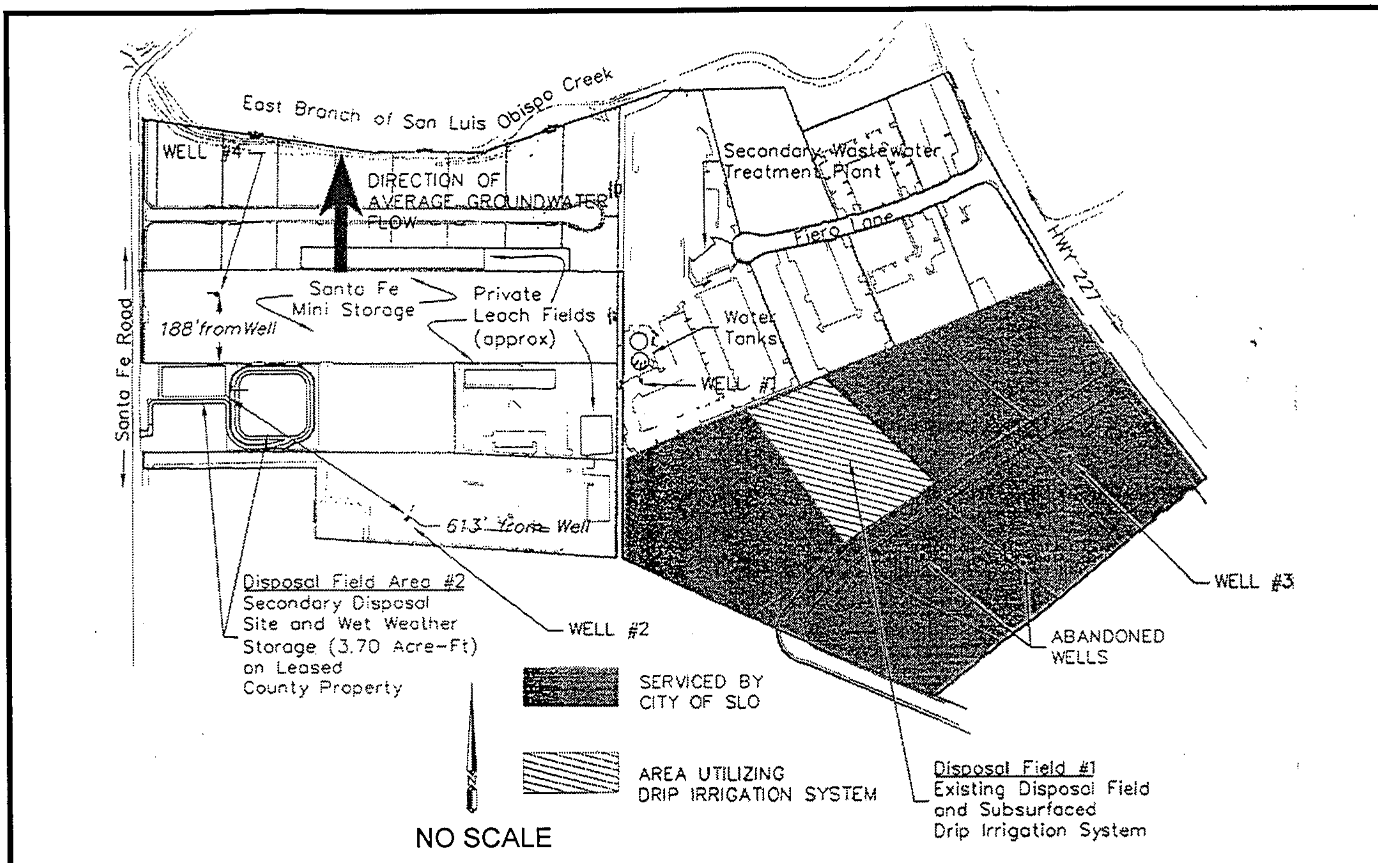
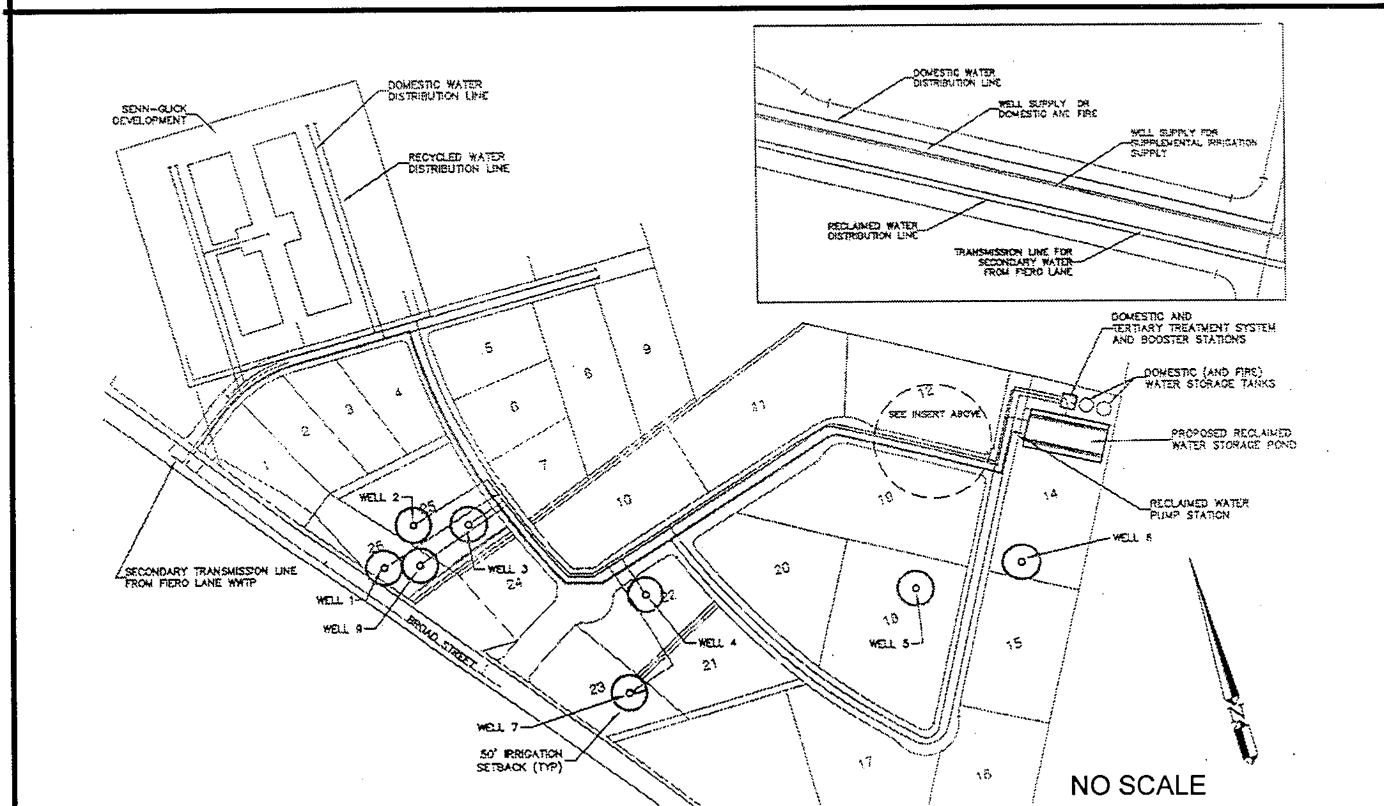


Attachment A
Facility Location
Fiero Lane Water Company, San Luis Obispo County

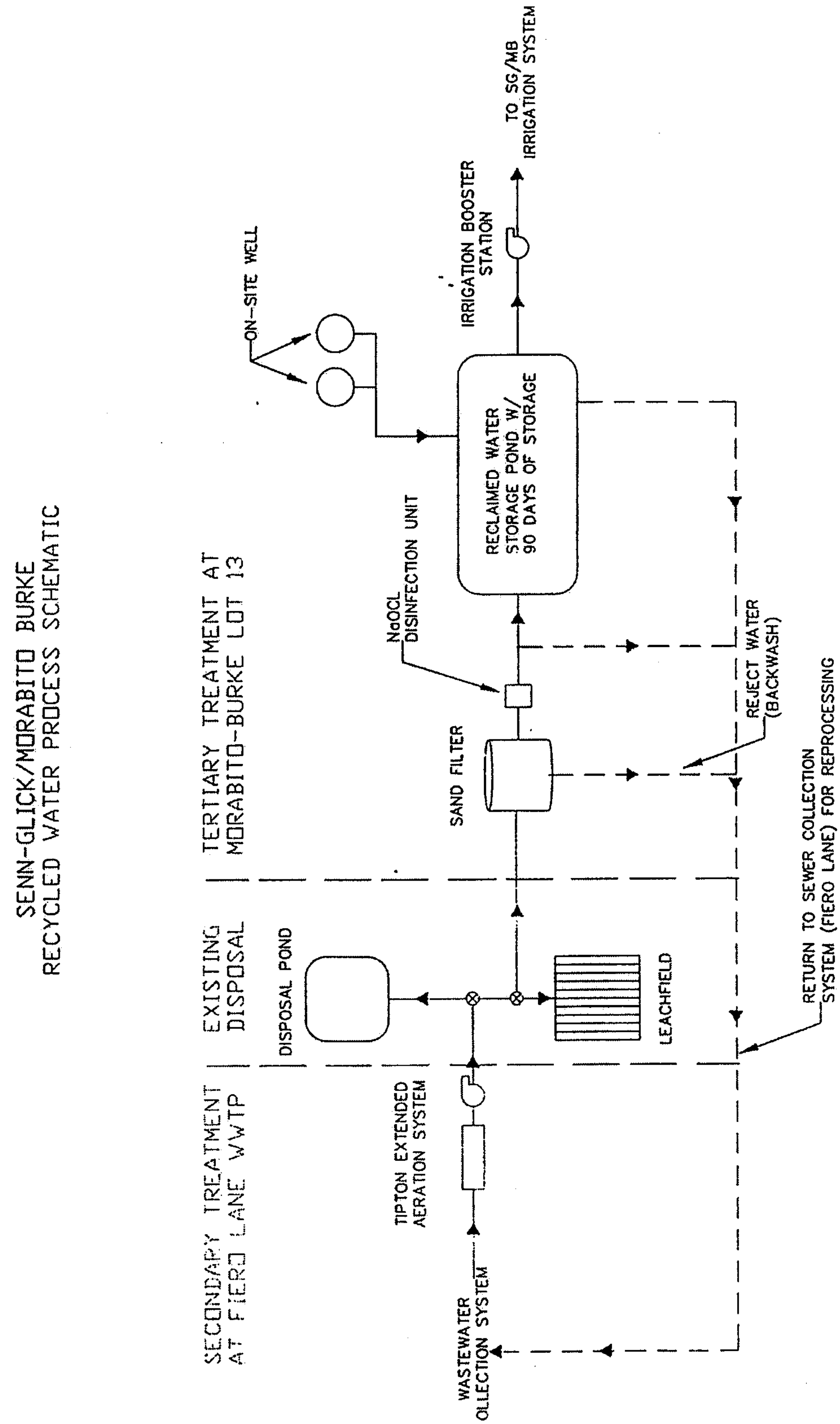




Attachment B

Disposal and Recycled Water Use Areas

Fiero Lane Water Company, San Luis Obispo County



Attachment C
Treatment Process Flow Diagram
Fiero Lane Water Company, San Luis Obispo County

CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD
CENTRAL COAST REGION
895 Aerovista Place, Suite 101
San Luis Obispo, California 93401

MONITORING AND REPORTING PROGRAM NO. R3-2004-0154

Waste Discharge Identification No. 3 401023001

For

FIERO LANE WATER COMPANY
SAN LUIS OBISPO COUNTY

A. WATER SUPPLY MONITORING

Representative samples of the water supply shall be collected and analyzed as follows:

Constituent	Units	Type of Sample	Minimum Sampling and Analysis Frequency
Total Dissolved Solids	mg/L	Grab	Annually (September)
Sodium	mg/L	Grab	" "
Chloride	mg/L	Grab	" "
Total Nitrogen	mg/L as N	Grab	" "

B. INFLUENT MONITORING

Representative samples of wastewater entering the influent wet well shall be collected and analyzed as follows:

Constituent	Units	Type of Sample	Minimum Sampling and Analysis Frequency
Antimony	mg/L	8-hour composite[1]	Semi-Annually (Mar., Sept.)
Arsenic	mg/L	" "	" "
Barium	mg/L	" "	" "
Beryllium	mg/L	" "	" "
Cadmium	mg/L	" "	" "
Chromium (Total)	mg/L	" "	" "
Cobalt	mg/L	" "	" "
Copper	mg/L	" "	" "
Fluoride	mg/L	" "	" "
Lead	mg/L	" "	" "
Mercury	mg/L	" "	" "
Molybdenum	mg/L	" "	" "
Nickel	mg/L	" "	" "
Selenium	mg/L	" "	" "
Silver	mg/L	" "	" "
Thallium	mg/L	" "	" "
Vanadium	mg/L	" "	" "
Zinc	mg/L	" "	" "
Chlorinated Solvents (EPA Method 624)	mg/L	Grab[2]	" "

[1] Sample to be taken from influent before it mixes with influent in wet well
[2] Sample to be taken from wet well

C. SECONDARY TREATMENT PROCESS EFFLUENT MONITORING

Representative samples of effluent from the secondary treatment process shall be collected and analyzed as follows:

Constituent	Units	Type of Sample	Minimum Sampling and Analyzing Frequency
Average Daily Flow	Gallons per day (gpd)	Metered	Weekly
pH	Std. units	Grab	Weekly
Settleable Solids	mL/L	Grab	Daily
Total Coliform Organisms	MPN/100 mL	Grab	Daily, at least 7 days prior to and during periods of Secondary-23 recycled water use
Total Chlorine Residual	mg/L	Grab	Weekly
Total Suspended Solids	mg/L	Grab	" "
Total Dissolved Solids	mg/L	Grab	Semi-Annually (Mar., Sept.)
Sodium	mg/L	Grab	" "
Chloride	mg/L	Grab	" "

D. TERTIARY TREATMENT PROCESS EFFLUENT MONITORING

Representative samples of effluent from the tertiary treatment process shall be collected and analyzed as follows:

Constituent	Units	Type of Sample	Minimum Sampling and Analysis Frequency
Average Daily Flow	gpd	Metered	Daily
Total Coliform Organisms	MPN/100 mL	Grab	Daily
Total Coliform Organisms Running 7-Day Median	MPN/100 mL	Calculated	Daily
Turbidity[1]	NTU	Metered	Continuous
Average Effluent Turbidity (24-hour period)	NTU	Calculated	Daily
95th Percentile Effluent Turbidity (24-hour period)	NTU	Calculated	Daily
Daily Maximum Turbidity	NTU	--	Daily
Total Chlorine Residual	mg/L	Grab	Continuous
Daily Minimum Total Chlorine Residual	mg/L	--	Daily
CT Value[2]	mg-min/L	Calculated	Daily
pH	Std. units	Grab	Weekly
Total Dissolved Solids	mg/L	Grab	Semi-Annually (Mar., Sept.)
Sodium	mg/L	Grab	" "

[1] Disinfected tertiary recycled water shall be continuously sampled for turbidity using a continuous turbidity meter and recorder following filtration. Compliance with the 2 NTU daily average limitation shall be determined by averaging the recorded turbidity levels at four-hour intervals over a 24-hour period. Compliance with the 5 NTU limitation shall be determined using the recorded turbidity levels taken at intervals of no more than 1.2-hours over a 24-hour period. Should the continuous turbidity meter and recorder fail, grab sampling at a minimum frequency of 1.2-hours may be substituted for a period of up to 24-hours.

[2] CT is the product of total chlorine residual and modal contact time measured at the same point. The chlorine disinfection process must provide a CT value of no less than 450 milligram-minutes per liter at all times with a modal contact time of at least 90 minutes, based on peak dry weather design flow.

Constituent	Units	Type of Sample	Minimum Sampling and Analysis Frequency
Chloride	mg/L	Grab	" "
Total Nitrogen	mg/L as N	Grab	" "

E. DISPOSAL AREA MONITORING

To ensure compliance with this Order, particularly Prohibition No. 2., the Discharger shall inspect the treatment systems and the subsurface disposal areas weekly. During extended wet weather periods, more frequent inspections shall be made as needed. Evidence of any surfacing effluent, saturated surface areas, and odors, shall be reported to the Executive Officer within 24 hours of being discovered and promptly investigated and remedied. A record shall be kept of dates and nature of observations and remedies and of when use of leachfield trenches is alternated.

F. RECYCLED WATER USE AREA MONITORING

1. Supervisors of Secondary-23 recycled water use areas shall monitor recycled water use and immediately correct any non-compliance with these Water Recycling Requirements. Tertiary-2.2 recycled water use areas shall be inspected no less frequently than monthly. The status of compliance with these Water Recycling Requirements shall be noted in a bound inspection logbook. The logbook shall be made available to the Regional Board upon Executive Officer request. A summary of observations made during water recycling area inspections and a brief discussion of any corrective actions taken or planned shall be included with each quarterly monitoring report.

2. The Discharger shall cooperate with San Luis Obispo County Environmental Health Services and California Department of Health Services to ensure that backflow devices are present, tested regularly, and repaired or replaced if found defective.

3. The Discharger shall review recycled water meter readings quarterly to identify any unusual usage changes. Any dramatic changes in usage shall be promptly investigated.

G. SOLID WASTE MONITORING

The volume of sludge removed from the treatment facility, along with the date when removed and disposal location, shall be recorded and reported annually with each annual report.

H. REPORTING PROVISIONS

1. The Discharger shall immediately report any non-compliance potentially endangering public health or the environment to the Regional Board (805/549-3147) and the California Department of Health Services (805/566-1326), and any other appropriate agency. Any information shall be provided orally within 24 hours from the time the Discharger becomes aware of the circumstances. Such circumstances include:

   - Failure of chlorination equipment;
   - Tertiary treatment process effluent total coliform bacteria greater than 240 MPN/100 mL;
   - Tertiary treatment process effluent turbidity greater than 10 NTU; and
   - Tertiary treatment process disinfection process CT less than 450 mg-min/L.

   A written report shall also be submitted to the Executive Officer within five (5) days of the time the Discharger becomes aware of the circumstances. The written report shall contain (1) a description of the non-compliance and its cause; (2) the period of non-compliance, including dates and times, and if the non-compliance has not been corrected, the anticipated time it is expected to continue; and (3) steps taken or planned to reduce, eliminate, and prevent reoccurrence of the non-compliance.

2. **Quarterly** monitoring reports shall be submitted within 30 days of the end of each quarter. For example, first quarter sampling results shall be submitted by April 30 of each year. Each quarterly report shall include a list of names of users of the system and written certification by each user that no waste other than domestic wastewater has been discharged to the treatment and disposal system.

3. **Annual** monitoring reports shall be submitted by January 30 of each year, in accordance with Standard Provisions and Monitoring Requirements. Annual reports shall evaluate trends and summarize the previous year's data. In addition to the paper copy of the annual report, annual data shall be submitted electronically by 3.5" floppy diskette or electronic mail, preferably in Microsoft Excel file format.

4. Monitoring data shall be arranged in tabular format so the date, the constituents, and the concentrations are readily discernible. The data shall be summarized in a manner that clearly illustrates compliance with water recycling requirements.

5. The Discharger shall deliver a copy of each monitoring report in the appropriate format to:

California Regional Water Quality Control Board
Central Coast Region
895 Aerovista Place, Suite 101
San Luis Obispo, CA 93401

I. SEWAGE SPILL REPORTING PROVISIONS

Reporting to the Regional Board

1. Sewage spills greater than 1,000 gallons and/or all sewage spills that enter a water body of the State, or occur where public contact is likely, regardless of the size, shall be reported to the Regional Board by telephone as soon as notification is possible and can be provided without substantially impeding cleanup or other emergency measures, and no later than 24 hours from the time that the Dischargers have knowledge of the overflow.

2. Unless fully contained, sewage spills to storm drains tributary to Waters of the United States shall be reported as discharges to surface waters.

3. A written report of all relevant information shall be submitted to the Regional Board within five days of the spill, and shall include no less information than is required on the current Sewage Spill Report Form (see Attachment D), or equivalent, as approved by the Regional Board Executive Officer. Attachments to the report should be used as appropriate, and incidents requiring more time than the five-day period must be followed by periodic written status reports until issue closure. Photographs taken during the sewage spill incident and cleanup shall be submitted to the Regional Board in hard copy and electronic format.

4. The Dischargers shall sample all spills to surface waters to determine their effects on surface waters and submit the data to the Executive Officer in the next monthly monitoring report. Samples shall, at minimum, be analyzed for total and fecal coliform bacteria and enterococcus bacteria for spills to marine water, and fecal coliform bacteria for spills to fresh water. Sampling shall be conducted in the affected receiving water body upstream, at, and downstream of the spill's point of entry, and as necessary to characterize the spill's impact and to ensure adequate clean-up.

5. Spills under 1,000 gallons that do not enter a water body shall be reported to the Regional Board in writing and electronically (Excel spreadsheet preferred) within the next monthly monitoring report. Such reports shall include, at a minimum, a tabular summary of spill dates, locations, volumes, whether the spill discharged to surface waters (including conveyances thereto) or land, whether cleanup and/or disinfection was performed,

the spill's cause, the number of spills at the location in the last three years, and weather conditions.

This policy is subject to revision by the Executive Officer.

6. The Dischargers shall submit to the Regional Board with the annual report required above, a summary of all spills between January 1 and December 31 of the previous year. The summary should include the following information for each spill:

   a. Information requested in the Sewage Spill Report Form (Attachment E);
   b. How the spill volume was estimated and/or calculated;
   c. Photograph(s) of spill, if taken;
   d. Where the spill entered any storm drain inlet or surface waters;
   e. Steps taken or planned to reduce, eliminate, and prevent recurrence of the spill, and a schedule of major milestones for those steps;
   f. Steps taken or planned to mitigate the impact(s) of the spill, and a schedule of major milestones for those steps;
   g. Any additional correspondence and follow-up reports, as necessary, to supplement the Sewage Spill Report Form and to provide detailed information on cause, response, adverse effects, corrective actions, preventative measures, or other information.

7. The annual summary shall include detailed evaluations of repetitive or chronically occurring circumstances, such as problematic collection system areas or common spill causes, and the corrective actions taken to address such systematic problems.

8. If no sewage spills occurred in the last calendar year, a statement certifying that no sewage spills occurred may be submitted in lieu of the annual summary.

Reporting to the Governor's Office of Emergency Services

9. In accordance with the Governor's Office of Emergency Services (OES) 2002 Fact Sheet regarding the reporting of sewage releases, the California Water Code, commencing with Section 13271, requires that a discharge of sewage to State waters must be reported to OES.

10. To report sewage releases of 1,000 gallons or more (currently the federal reportable quantity) to OES, verbally notify the OES Warning Center at: (800) 852-7550, or (916) 845-8911.

11. The following fax number should be used *for follow-up information only*: (916) 262-1677. The reportable quantity is subject to revision by the State of California. OES reporting requirements for sewage releases and hazardous materials can be located on the OES Website @ www.oes.ca.gov in the California Hazardous Material Spill/Release Notification Guidance. The OES Hazardous Materials Unit staff is available for questions at (916) 845-8741.

12. OES Reporting Exceptions: Notification to OES of an unauthorized discharge of sewage or hazardous substances is not required if: 1) the discharge to State waters is a result of a cleanup or emergency response by a public agency; 2) the discharge occurs on land only and does not affect State waters; or 3) the discharge is in compliance with applicable waste discharge requirements. These exceptions apply only to the Discharger's responsibility to report to OES, and do not alter the Regional Board's reporting policies or waste discharge requirements.

Ordered by: Roger W. Briggs

Roger W. Briggs, Executive Officer

12-6-04

Date

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